

M/s K.L. Concast Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 23 November 2020 · Writ - C No. 17794 of 2020 · **Time granted for counter and rejoinder; listed 4 January 2021.**

HEADNOTE

Allahabad High Court (Sunita Agarwal and Jayant Banerji, JJ.) granted the licensee three weeks to file a counter affidavit and one week thereafter for rejoinder on a writ alleging delay of more than six months in determining a load-reduction request under Section 43 of the Electricity Act, 2003 and Clause 4.41(b) of the Electricity Supply Code, 2005, and listed the matter on 4 January 2021. Those provisions were not construed.

FACTUAL SUMMARY

The petitioners, M/s K.L. Concast Pvt. Ltd. and another, filed a writ petition against Paschimanchal Vidyut Vitran Nigam Limited complaining that the licensee took more than six months to determine their request for reduction of load. They alleged that the delay ran contrary to Section 43 of the Electricity Act, 2003 read with Clause 4.41(b) of the Electricity Supply Code, 2005. At the first listing, counsel for the Corporation sought time to file a counter affidavit.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

interlocutory listing; load-reduction delay not decided

HOLDING

The Division Bench granted the licensee three weeks to file a counter affidavit and one week thereafter for the petitioners' rejoinder, and listed the writ on 4 January 2021. The complaint that determination of a load-reduction request took more than six months contrary to Section 43 of the Electricity Act, 2003 and Clause 4.41(b) of the Electricity Supply Code, 2005 was not adjudicated. ¶ 1

PRINCIPLE TAGS

procedural-listing-no-construction

Writ alleging delay in deciding a load-reduction request under Section 43 and Clause 4.41(b) was adjourned for pleadings without any construction of those provisions. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER DELAY OF MORE THAN SIX MONTHS IN DETERMINING A LOAD-REDUCTION REQUEST VIOLATED SECTION 43 OF THE ELECTRICITY ACT, 2003 AND CLAUSE 4.41(B) OF THE ELECTRICITY SUPPLY CODE, 2005.

Only time for counter and rejoinder was granted; merits not heard. ¶ 1